

RESEARCH PAPER

Corroboration in Rape Trials: Balancing Victim Testimony and the Presumption of Innocence in Indian Courts

Submitted By: Netra Boricha

BBA LL.B. (Hons.)

University of Mumbai Law Academy

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ABSTRACT

Prosecutrix testimony plays a significant role in rape cases when independent witnesses are unavailable. Indian Courts have held that corroboration is not mandatory if her testimony is reliable. However, this does not absolve the need to apply critical scrutiny nor does it negate the need to prove the guilt of the accused beyond reasonable doubt.

This paper discusses the role of corroboration in rape cases and its relationship with the presumption of innocence. Through an analysis of statutory provisions and judicial decisions, this paper shows the need to distinguish between minor inconsistencies and material contradictions and advocates for the need to evaluate each piece of evidence on its own merits.

INTRODUCTION

The cases of rape are usually complicated ones due to the absence of any independent eyewitnesses. This is why the testimony from the prosecutrix should be evaluated by Indian courts with a specific weight. On the one hand, it is correct to say that her statements do not need any corroboration as a mandatory rule of evidence when it is proved to be reliable and credible.

On the other hand, the said testimony should also be considered in the context of the accused rights' to a fair trial and his or her proof beyond of any reasonable doubt. Therefore, it is interesting to analyze how Indian courts try to find a middle ground between these claims. That is why the present paper focuses on the concept of corroboration and the testimony of the prosecutrix and the presumption of innocence.

RESEARCH METHODOLOGY

This paper adopts a doctrinal approach based primarily on the Bharatiya Nyaya Sanhita, 2023, the Bharatiya Sakshya Adhiniyam, 2023, and relevant judgments of the Supreme Court and High Courts. Judicial decisions concerning the testimony of the prosecutrix, corroboration, burden of proof and presumption of innocence have been examined to understand their application in rape trials. Secondary legal sources have been used only to support the study and analysis.

EVOLUTION OF THE LAW ON RAPE AND EVIDENCE IN INDIA

The evolution of the law on rape and appreciation of evidence has been through legislative reforms and judicial pronouncements, which have increasingly shifted the focus from the woman's conduct and character to greater weightage to the testimony of the prosecutrix.

a) *The Position before 1983*

The law was governed by the Indian Penal Code 1860 and Indian Evidence Act 1872. The Mathura rape case *Tukaram v. State of Maharashtra*, (1979) 2 SCC 143¹ was to trigger a wave of revulsion against the brutal rape and the subsequent proceedings which led to the amendment of the Indian Penal Code and Indian Evidence Act, 1872 through the Criminal Law (Amendment) Act, 1983.

¹ *Tukaram v. State of Maharashtra*, (1979) 2 SCC 143, Supreme Court of India, Bench: A.D. Koshal, Jaswant Singh and P.S. Kailasam, JJ., decided on 15 September 1978.

b) Legislative Developments

The 1983 amendment brought in significant changes in the areas of custodial rape and sexual offences. The Indian Evidence Act was amended by inserting Section 114A which placed a presumption as to lack of consent in certain cases.²

c) Judicial Developments

The judiciary also played its part in interpreting the law relating to rape and appreciation of evidence. In *Bharwada Bhoginbhai Hirjibhai v. State of Gujarat*, (1983) 3 SCC 217: AIR 1983 SC 2257³, the Supreme Court was concerned with the problem of unwarranted speculation about the conduct of women after the sexual assault and counselled against such speculation.

In *State of Punjab v. Gurmit Singh*, (1996) 2 SCC 384⁴, the Supreme Court ruled that in a rape case mere discrepancies in the testimony of the prosecutrix would not vitiate her entire testimony and that corroboration was not indispensable in all rape cases.

d) Present Position

The BNS and the BSA now govern the substantive law on rape and appreciation of evidence as opposed to the IPC and Indian Evidence Act, 1872. The definition of rape and punishment therefor is contained in Sections 63 and 64, BNS.⁵ The issues in regard to appreciating the testimony of the prosecutrix and the need for corroboration still linger on.

LEGAL FRAMEWORK

A. BNS – Meaning and Punishment for Rape

The Bharatiya Nyaya Sanhita, 2023 (BNS) comes into force on 1 July 2024. It defines rape in terms of section 63 and prescribes its punishment according to section 64.⁶ These sections provide the substantive law of the crime, but the present paper concentrates on the issue of proof and the role of the testimony of the prosecutrix.

² Criminal Law (Amendment) Act, 1983, provisions relating to amendments to the Indian Penal Code, 1860 and the Indian Evidence Act, 1872, including insertion of Section 114A of the Indian Evidence Act, 1872.

³ *Bharwada Bhoginbhai Hirjibhai v. State of Gujarat*, (1983) 3 SCC 217, Supreme Court of India, Bench: M.P. Thakkar and A.P. Sen, JJ., decided on 24 May 1983, particularly the Court's discussion concerning appreciation of evidence and minor discrepancies in testimony.

⁴ *State of Punjab v. Gurmit Singh*, (1996) 2 SCC 384, Supreme Court of India, Bench: K. Jayachandra Reddy and S.C. Sen, JJ., decided on 16 January 1996, particularly paras 8 and 21, concerning the appreciation of the prosecutrix's testimony, minor discrepancies and the question of corroboration.

⁵ Bharatiya Nyaya Sanhita, 2023, ss. 63–64

⁶ Bharatiya Nyaya Sanhita, 2023, ss. 63–64; The Bharatiya Nyaya Sanhita, 2023 was brought into force with effect from 1 July 2024.

B. BSA – Evidence and Corroboration

The Bharatiya Sakshya Adhiniyam, 2023 (BSA) contains provisions relating to the proof and corroboration of evidence. Section 160 permits a former statement made by a witness relating to the same fact to be proved to corroborate the witness's subsequent testimony. However, the Supreme Court has held that corroboration of the prosecutrix's testimony is not mandatory in every rape case.⁷

C. Burden of Proof

The BSA contains general provisions dealing with the burden of proof. The prosecution bears the burden of establishing the guilt of the accused on the evidence placed before the court.⁸ They affect the allocation of the burden of proof in accordance with the general rule that the prosecution bears the burden to prove beyond reasonable doubt that the accused person committed a crime. Therefore, the absence of mandatory corroboration does not mean that the evidence of the prosecutrix may not be sufficient for a conviction. The interaction between the allocation of the burden to prove beyond reasonable doubt, the principle of presumption of innocence and corroboration is the subject of the following analysis.

EVIDENTIARY VALUE OF THE PROSECUTRIX'S TESTIMONY

The evidence of the prosecutrix holds an important weightage in trials of rape as such crimes are committed in a private place and have no other witnesses. Therefore, the law does not require corroboration of her testimony.

In the case of *State of Punjab v. Gurmit Singh*, (1996) 2 SCC 384⁹. The Supreme Court held that the testimony of the prosecutrix may be taken into account even when there is no corroboration so long as the evidence inspires confidence. The Supreme Court also cautioned that trivial inconsistencies and minute irregularities must not be overemphasized while evaluating her evidence. This principle was reiterated by the Supreme Court in the case of *Ganesan v. State*, (2020) 10 SCC 573¹⁰ where it held that the reliable and

⁷ Bharatiya Sakshya Adhiniyam, 2023, s. 160; *State of Punjab v. Gurmit Singh*, supra note 4.

⁸ Bharatiya Sakshya Adhiniyam, 2023, ss. 104–106.

⁹ *State of Punjab v. Gurmit Singh*, supra note 4, paras 8, 21.

¹⁰ *Ganesan v. State, represented by its Inspector of Police*, (2020) 10 SCC 573, Supreme Court of India, three-Judge Bench: Ashok Bhushan, R. Subhash Reddy and M.R. Shah, JJ., decided on 14 October 2020.

CORROBORATION IN RAPE TRIALS

trustworthy testimony may be considered sufficient for the purpose of conviction even if they fail to be corroborated.

However, this does not mean that the testimony is accepted readily. In *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, (2012) 8 SCC 21.¹¹ The Supreme Court talks about the concept of a '*sterling witness*' and the importance of the testimony being consistent and enduring cross-examination to be considered reliable.

Therefore, there is a thin line between not requiring corroboration and not scrutinizing carefully. The fact that the prosecutrix is the sole witness cannot override any other aspect of the case. Her evidence must be evaluated with the other conditions of the case. Substantial contradictions or factors affecting the truth of the testimony cannot be overlooked. Hence, the evidentiary value of the prosecutrix's testimony is dependent on the fact that it is reliable enough to prove the prosecution's case.

ROLE OF CORROBORATION IN RAPE TRIALS

It is not essential to the case. Indian courts have held that when it comes to testimonies of the prosecutrix if they are reliable and give confidence then this could be enough for a conviction. It depends on the facts of the particular case whether such need would arise or not.

a) Corroboration is Not Mandatory

In *State of Punjab v. Gurmit Singh*, (1996) 2 SCC 384, SC has said that corroboration is not required as a matter of law because that crime is often committed without eyewitnesses. It was elaborated upon further in *Ganesan v. State*, (2020) 10 SCC 573 where SC held that credible testimony of the victim can independently support a conviction.¹²

b) When Corroboration May Become Relevant

Lack of a mandatory requirement does not mean that testimony must be accepted at face value. As per *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, (2012) 8 SCC 21, SC held that courts would look into the consistency between versions of the prosecutrix and what degree

¹¹ *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, (2012) 8 SCC 21, Supreme Court of India, Bench: Swatanter Kumar and Fakkir Mohamed Ibrahim Kalifulla, JJ., decided on 7 August 2012, particularly para 15 concerning the standard of a "sterling witness".

¹² *State of Punjab v. Gurmit Singh*, supra note 4; *Ganesan v. State*, represented by its Inspector of Police, supra note 10.

her testimony has withstood the cross-examination. Wherever such inconsistencies or circumstances arise, the court will look to see if there exists supporting evidence.¹³

c) Other Forms of Supporting Evidence

Such corroboration need not necessarily come from another eyewitness. Depending on the circumstances of the case, medical, forensic, documentary or other circumstantial evidence could help the court in evaluating the prosecution's case.¹⁴ However, the absence of such evidence does not necessarily discredit the testimony of the prosecutrix.

Thus, it can be seen that corroboration is best understood as a tool to judge reliability rather than a fixed legal position. Its necessity depends on the facts of the particular case.

PRESUMPTION OF INNOCENCE AND PROOF BEYOND REASONABLE DOUBT

The mere fact that the testimony of prosecutrix may be enough to convict the accused is not a reason to ignore the basic truth that a person is considered innocent till proven guilty which means that the prosecution has to prove the guilt of the accused beyond reasonable doubt. Thus, the testimony of the prosecutrix has to be evaluated very carefully.

In *Raju v. State of Madhya Pradesh*, (2008) 15 SCC 133. The Supreme Court noted that though the testimony of the prosecutrix may be sufficient to convict the accused, such a situation cannot be treated as a mechanical formula, especially in cases where there are certain contradictions in her version. The court then discussed that in such circumstances where other materials also point towards the guilt of the accused, the court should look into the entire case before arriving at any conclusion keeping in mind the fact that the testimony of the prosecutrix may not be sufficient to convict the accused.¹⁵

In *State of Punjab v. Gurmit Singh*, (1996) 2 SCC 384. The Court held that minor inconsistencies cannot be treated as a basis for reasonable doubt in the case. Also, if the testimony of the prosecutrix inspires confidence, it cannot be rejected only on the grounds of lack of corroboration.¹⁶ Thus, in both the cases it can be said that the two principles are linked to each other. That lack of corroboration does not decrease the burden of the

¹³ *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, supra note 11, particularly paras 15–16.

¹⁴ *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, supra note 11, particularly paras 16–22.

¹⁵ *Raju & Ors. v. State of M.P.*, (2008) 15 SCC 133, Supreme Court of India, Bench: Harjit Singh Bedi and Dalveer Bhandari, JJ., decided on 3 December 2008, particularly para 11, concerning the need to assess the testimony of the prosecutrix carefully and the protection of the accused against false implication.

¹⁶ *State of Punjab v. Gurmit Singh*, supra note 4.

prosecution and the presumption of innocence of the accused does not decrease the need to establish the guilt of the accused beyond reasonable doubt.

JUDICIAL BALANCING AND CRITICAL ANALYSIS

The Indian Courts have made an attempt to balance the evidentiary relevance and weightage of the prosecutrix's testimony with the concomitant responsibility not to convict in the absence of satisfactory proof leading to conviction beyond reasonable doubt. The mere absence of independent witnesses, given the secrecy and privacy with which sexual offences are generally committed, does not vouchsafe the untruth of her testimony, but the same has to be subjected to a critical analysis.

In *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, (2012) 8 SCC 21, the apex Court has taken into consideration the material inconsistencies in the various versions of the prosecutrix and concluded that in the particular facts and circumstances of that case, her testimony alone would not be sufficient to convict the accused.¹⁷ This case thus brings out the difference between a mere absence of corroboration and absence of examination of the testimony.

The Courts need to draw a distinction between mere trifling inconsistencies and material contradictions which go to the root of the prosecution's case. The medical, forensic and circumstantial evidence, if any, may help to evaluate credibility, but absence of such proof cannot be presumed as proof of non-occurrence of the alleged offence, but would have to be viewed in the context of specific facts and circumstances of the case.

Thus, what emerges as the trend is the adoption of case-specific analysis. The testimony of the prosecutrix may be enough to convict, but the prosecution would have to prove beyond reasonable doubt the commission of the crime and the accused's criminal liability thereby simultaneously protecting the evidentiary relevancy of the prosecutrix's testimony as well as the accused's presumption of innocence and the right to a fair trial.

¹⁷ *Rai Sandeep @ Deepu v. State (NCT of Delhi)*, supra note 11, particularly paras 15–22.

CONCLUSION

Based on the foregoing discussion, it can be concluded that corroboration is not always necessary in rape cases. It is always possible that the testimony of the prosecutrix will be found to be reliable and therefore conclusive. It follows that the absence of corroboration is not always conclusive either since there are other pieces of evidence that may be taken into consideration. If there are contradictions in the witness's statements or other circumstances in the case that cast doubt on the prosecutrix's testimony, the court may disregard the evidence or take it with a pinch of salt while evaluating the prosecution's overall case.

It must also be stressed that this conclusion does not violate the defendant's right to a fair trial and the principle of proof beyond reasonable doubt since the prosecution's case is built on the evidence collected, including the testimonies of witnesses. Therefore, although it is wrong to dismiss the testimony of the prosecutrix in a rape case, it would also be wrong to ignore the defendant's fair trial rights and convict him solely based on the evidence presented. In each case, the jury must weigh the evidence presented and judge the case based on facts that eliminate any reasonable doubt regarding the defendant's guilt.

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